

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: July 6, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

1	Lawrence v. The Cape Series at Aliso Viejo Maintenance Corp. 2023-03134623	The Court will hear this matter as a status conference as a Notice of Withdrawal of the motions was filed on July 1, 2026.
3	Hong v. Indieworks Corp. 2024-01394470 Demurrer to first amended cross-complaint and Motion to strike portions of first amended cross complaint	The Court is ordering both motions be continued to a future date to be determined on July 6, 2026. Before filing a demurrer, the moving party shall meet and confer with the opposing party in person, by telephone, or by video conference at least 5 days before a responsive pleading is due to see if a resolution can be reached on the objections to the pleading. (Code Civ. Pro., § 430.41, subds. (a), (a)(2).) Counsel for Plaintiff/cross-defendant Hong states he sent Defendant/cross-complainant's counsel a letter on 2/5/26 setting forth the grounds for demurrer. (Eghbali Decl., ¶¶ 4-6, Ex. A.) (ROA 370.) Counsel's letter requested Hong's counsel either stipulate to dismiss the First Amended Cross-Complaint against Hong with prejudice by 2/17/26 or Cross-defendant would file its demurrer. (Eghbali Decl., Ex. A.)

	Counsel stated Cross-defendant remains available to meet and confer by telephone. (Eghbali Decl., Ex. A.) Counsel states, "The issues raised in the February 5, 2026, meet-and-confer correspondence were not resolved so as to eliminate the need for the present demurrer." (Eghbali Decl., ¶ 9.) This does not satisfy the meet and confer requirement. Counsel does not state he actually met and conferred with counsel for Defendant/cross-complainant. The Court ORDERS the parties to meaningfully meet and confer in person, by telephone, or by video conference (email/letter is insufficient) concerning the issues raised in the demurrer. Plaintiff/cross-defendant is to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will construe this to mean that the issues have been resolved and will take the demurrer off-calendar. MOTION NO. 2 – MOTION TO STRIKE PORTIONS OF FIRST AMENDED CROSS-COMPLAINT Before filing a motion to strike, the moving party shall meet and confer with the opposing party in person, by telephone, or by video conference at least 5 days before a responsive pleading is due to see if a resolution can be reached on the objections raised in the motion. (Code Civ. Pro., § 435.5, subds. (a), (a)(2).) Counsel for Plaintiff/cross-defendant Hong states he sent Defendant/cross-complainant's counsel a letter setting forth grounds for a motion to strike. (Eghbali Decl., ¶¶ 4-6, Ex. A.) Counsel's letter requested IWC dismiss the FACC with prejudice by no later than 2/17/26, stated that absent dismissal, Hong would proceed with filing a motion to strike, and invited IWC's counsel to meet and confer telephonically. (Eghbali Decl., ¶ 5.) Counsel states "[t]he issues raised in the February 5, 2026 meet-and-confer correspondence were not resolved so as to eliminate the need for the present motion to strike. (Eghbali Decl., ¶ 10.) This does not satisfy the meet and confer requirement. Counsel does not state he actually met and conferred with counsel for Defendant/cross-complainant. The Court ORDERS the parties to meaningfully meet and confer in person, by telephone, or by video conference
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		(email/letter is insufficient) concerning the issues raised in the motion to strike. Plaintiff/cross-defendant is to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will construe this to mean that the issues have been resolved and will take the motion to strike off-calendar.
4	Edwards v. Arpajian Enterprises, Inc. 2025-01530696 Motion to Compel Arbitration	The Court GRANTS Defendant's Motion to Compel Arbitration. The parties do not dispute the existence of an agreement to arbitrate. Defendant attached the Arbitration Provision (Provision) to its Motion. (Weber Decl., Ex. 2.) <u>Unconscionability:</u> Procedural and substantive unconscionability "must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability." (<i>Armendariz v. Foundation Health Psychcare Servs., Inc.</i> (2000) 24 Cal. 4th 83, 114 (<i>Armendariz</i>)). "[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (<i>Ibid.</i>) "The party resisting arbitration bears the burden of proving unconscionability." (Pinnacle, supra, 55 Cal. 4th at p. 247.) <u>a. Procedural Unconscionability:</u> "Procedural unconscionability focuses on the elements of oppression and surprise." (<i>Serafin v. Balco Properties Ltd., LLC</i> (2015) 235 Cal.App.4th 165, 177.) "Adhesion contracts are subject to scrutiny because they are not the result of freedom or equality of bargaining. However, they remain valid and enforceable unless the resisting party can also show that one or more of the contract's terms is substantively unconscionable or otherwise invalid." (<i>Ramirez v. Charter Commc'ns, Inc.</i> (2024) 16 Cal.5th 478, 492–93. Plaintiff's employment was conditioned on signing the Provision. Thus, Plaintiff has shown a moderate degree of procedural unconscionability. <u>b. Substantive Unconscionability:</u> "Substantive unconscionability focuses on the actual terms of the agreement and evaluates whether they create 'overly harsh' or 'one-sided' results.'" (<i>Serafin v. Balco Properties Ltd., LLC</i> (2015) 235 Cal.App.4th 165, 177.) The Provision's scope encompassing "all claims and controversies ... relating to, or resulting from, or in any way arising out of the attached agreement" is not substantively unconscionable. (See, <i>Stoker v. Blue Origin, LLC</i> (2026) 120

		Cal.App.5th 91, 107; <i>Cook v. University of Southern California</i> (2024) 102 Cal.App.5th 312, 321.) The Provision is modestly substantively unconscionable for requiring arbitration conclude within 120 days of appointing an arbitrator. (See, <i>Baxter v. Genworth North America Corp.</i> (2017) 16 Cal.App.5th 713, 736.) Paragraph 9 of the Provision is substantively unconscionable because it limits the pool of arbitrators to those who, like Defendant, have experience as a restaurant or bar owner. (Weber Decl., Ex. 2.) However, this provision is severable. (See Civ. Code, § 1670.5(a); <i>Gentry v. Superior Court</i> (2007) 42 Cal.4th 443, 466.) Thus, Plaintiff has shown moderate procedural unconscionability and a modest degree of substantive unconscionability. Therefore, Plaintiff has not shown sufficient unconscionability to void the arbitration provision. Accordingly, Defendant's Motion is granted. The Court will set a post-arbitration status conference for a future date to be determined on July 6, 2026. The parties are ORDERED to file a Status Report 5 days prior.
5	Loeffler v. Association Lien Services, Inc. 2016-00873201 Motion to Tax Costs	The Court GRANT's Judgment Debtor, Jennifer Loeffler's Motion to Tax Costs in an amount to be determined after the Court receives further information. Loeffler moves to tax costs on the grounds Trabuco did not credit a payment of \$6,000 in the memorandum of costs and interest was miscalculated. Trabuco opposes on the grounds Loeffler's motion is untimely and the calculations are proper. Timeliness of Loeffler's motion. A judgment debtor may file a motion to tax within 10 days after the memorandum of costs is served on the judgment debtor. (Code Civ. Proc., § 685.070, subd. (c).) The memorandum of costs at issue was served on 3/6/26, and Loeffler's motion was filed on 3/12/26. Trabuco contends Loeffler's motion is nevertheless untimely because Loeffler did file motions to tax costs in response to previously filed memoranda of costs despite reflecting the same alleged issue with the interest calculation. Trabuco provides no authority for its contention that failing to object to a prior memorandum of costs precludes a party from timely objecting to any subsequently filed memorandum.

	On its face, the statute refers to a 10-day deadline when a "memorandum of costs is served on the judgment debtor." The memorandum of costs at issue was served on Loeffler on 3/6/26, and she timely filed a motion to tax on 3/12/26. Loeffler contends the memorandum fails to account for a credit of \$6,000 from a levy of Loeffler's Bank of America checking accounts. (Rader Decl., ¶ 2.) Trabuco contends Loeffler's principal judgment and interest amounts are not entitled to a credit as the levy was pursuant to a writ of execution issued to enforce a judgment against Loeffler in a related case, Loeffler v. Trabuco Highlands Community Association (Case No. 30-2022 01284907), and not this case. (Hammond Decl., ¶¶ 18-26.) Trabuco attempted to levy Loeffler's Bank of American accounts in this action but was informed that Bank of America identified no leviable funds. (Hammond Decl., ¶¶ 29-32; Poon Decl., ¶ 3.) Accordingly, the Court does not find Loeffler was entitled to the \$6,000 credit in this action. The memorandum reflects total interest accrued in the amount of \$335,959.98. Loeffler contends there was an overcharge of \$65,523.58 as interest should amount to \$270,436.40. Loeffler contends interest should run interest should run from the time subsequent costs were added rather than on the entire sum of the judgment, after costs (including attorneys' fees) were subsequently added, from the date of the initial judgment. Loeffler relies on Judicial Council Form No. MC-013-INFO, which provides: "Interest generally accrues from the date the judgment is entered. Interest begins to accrue on the amount of costs added to a judgment from the date ordered by the court or from the date costs are allowed following expiration of the time to object." Trabuco contends Code of Civil Procedure § 685.020 does not distinguish between original judgments and amended judgments. Trabuco further contends Judicial Council Forms are not legal authority. Section 685.020, subdivision (a), provides in part, "interest commences to accrue on a money judgment on the date of entry of the judgment." As such, while section 685.020 references the judgment, it does not specifically reference costs.
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		Alternatively, Judicial Council Form No. MC-013-INFO references the general rule that interest run from the date judgment is entered, but also specifically provides interest begins to accrue for “the amount of costs added to a judgment” from the date ordered by the court” This does not run contrary to section 685.020, but instead provides additional information as to the accrual of interest for costs. Pursuant to Government Code § 68511, “[t]he Judicial Council may prescribe by rule the form and content of forms used in the courts of this state.” MC-012, the Memorandum of Costs After Judgment, is a mandatory form, while MC-013-INFO is an optional form provided to assist the judgment creditor in determining the interest and the amount owed. Thus, though not legal authority, MC-013-INFO is provided by the Judicial Council to assist in the filing of the mandatory memorandum of costs. Thus, the Court finds interest begin to accrue on the subsequently added costs from the date ordered by the court or from the date costs. The Court does not find, however, that interest ceases to accrue on previously awarded judgment/costs when subsequent costs are awarded. The Court intends to discuss further with counsel the correct amounts and dates to be used in the recalculation of interest consistent with the Court’s findings. After further discussion with counsel on 7/6/26, the Court will order Loeffler to file a supplemental declaration setting forth a corrected calculation of interest pursuant to the Court’s findings within five court days of this Order.
6	Vandyke v. Capistrano Unified School District Facilities Corporation 2024-01389174 Motion to Tax Costs	Plaintiff Debe VanDyke’s Motion to Tax Costs is GRANTED in part and DENIED in part. Plaintiff moves to tax Defendant Orange County Department of Education’s (OCDE) memorandum of costs in the amount of \$6,407.63. Code of Civil Procedure § 1032, subdivision (b) states: “Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” Code of Civil Procedure § 1033.5 sets forth the specific items of costs which may and may not be recoverable in a civil action. (Code Civ. Proc. § 1033.5, subds. (a), (b).) An item not specifically allowable or specifically prohibited under the statute may nevertheless be recoverable in the court’s discretion. (Code Civ. Proc. § 1033.5(c)(4).) All recoverable costs are limited to those that are both “reasonable in amount” and “reasonably necessary to the conduct of

	litigation.” (Code Civ. Proc. § 1033.5(c)(2), (3).) Costs “merely convenient or beneficial to its preparation” are disallowed. (Code Civ. Proc. § 1033.5(c)(2); <i>Ladas v. California State Automobile Ass’n</i> (1993) 19 Cal.App.4th 761, 774 [expenses for attorney’s meals incurred while attending local depositions not “reasonably necessary” since “attorneys have to eat whether they are conducting litigation or not”].) “If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. On the other hand, if items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. However, whether a cost item was reasonably necessary is still a question of fact to be decided by the trial court . . . [M]ere statements in the points and authorities accompanying the motion to tax costs and the declaration of its counsel are insufficient to rebut prima facie showing that the claimed costs were necessarily incurred.” (<i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1266; see <i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131 [party seeking to tax deposition of designated expert has burden to prove cost unnecessary at time incurred or unreasonable]; see also <i>Fennessy v. DeLeuw-Cather Corp.</i> (1990) 218 Cal.App.3d 1192 [contestant met burden by showing majority of costs claimed by a dismissed defendant were incurred on behalf of other defendants who remained in the case].) Here, OCDE seeks to recover costs of \$6,407.62, which consists of \$1,167.95 for deposition costs and \$5,239.68 for costs for service of process. OCDE’s Memorandum of Costs is verified by OCDE’s counsel, Bradley Beherns. (See ROA 75; Remick Decl. iso Motion, Ex. B.) As such, the costs as set forth in the cost memorandum is prima facie evidence of their proprietary. OCDE seeks to recover \$1,167.95 for obtaining copies of two deposition transcripts. The deponents were OCDE’s employees. (Beherns Decl., ¶ 7.) Plaintiff noticed and took the depositions. (Ibid.) The taking, video recording, and transcribing necessary depositions is expressly allowed by statute. (Code Civ. Proc., § 1033.5, subd. (a)(3).) Plaintiff seeks to tax the entirety of these costs. Plaintiff argues they were not reasonably necessary because OCDE did not use the deposition transcripts to support its MSJ, which was based on a single issue, the exclusive remedy doctrine of the Workers’ Compensation Act. Plaintiff’s argument lacks merit. The mere fact that the transcripts were not used to support OCDE’s MSJ does not establish the transcripts were not reasonably necessary to
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	the conduct of litigation. A prevailing party's right to recover costs is not conditioned upon the use of the transcripts in a motion or at trial. (See, <i>Doe v. Los Angeles County Dept. of Children & Family Services</i> (2019) 37 Cal.App.5th 675, 694 [stating service of process fees are not limited to witnesses used at trial].) Further, section 1033.5, subdivision (c)(4) gives the Court discretion to allow costs not specifically mentioned in the statute. (See, e.g., <i>Applegate v. St. Francis Lutheran Church</i> (1994) 23 Cal.App.4th 361, 364 [the cost of preparing exhibits not introduced into evidence because the case is dismissed before trial].) Here, OCDE asserted several defenses in its Answer to the Complaint besides the exclusive remedy doctrine. Had the Court denied OCDE's MSJ, OCDE would need the transcripts to prepare its defense for trial. Defense counsel states OCDE obtained copies of the transcripts to evaluate the testimony, prepare for trial, and formulate its summary judgment strategy. (Beherns Decl., ¶ 7.) "Although the scope of the summary judgment motion was more narrow than the potential issues that might arise at trial, [defendant] was entitled to conduct discovery necessary to prepare for trial and to recover those costs after prevailing in the action. It would be anomalous to deny costs where [defendant] utilized a more economical procedure." (<i>Naser v. Lakeridge Athletic Club</i> (2014) 227 Cal.App.4th 571, 578.) Thus, obtaining copies of the transcript was reasonably necessary to the conduct of litigation. Service of Process OCDE seeks to recover \$5,239.68 for service of process. These costs represent fees incurred by registered process servers to serve 35 deposition subpoenas for business records on Plaintiff's medical providers. (Beherns Decl., ¶ 9.) Costs associated with service of process by a public officer, registered process server, or other means are recoverable. (Code Civ. Proc. § 1033.5, subd. (a)(4).) Recoverable costs for service by a registered process server "is the amount actually incurred in effecting service, including, but not limited to, a stakeout or other means employed in locating the person to be served, unless those charges are successfully challenged by a party to the action." (Code Civ. Proc. § 1033.5, subd. (a)(4)(B).) Plaintiff seeks to tax the entirety of these costs. Plaintiff argues these costs were not reasonably necessary because OCDE did not use the medical records to support its MSJ. Plaintiff's argument fails here for the same reasons discussed in regard to the deposition costs. In addition, Plaintiff's "medical records were clearly relevant to her personal injury claim, and [OCDE] was entitled to depose the custodian of records for each of [Plaintiff]'s health care providers and potential experts." (<i>Naser, supra</i>, 227 Cal.App.4th at p. 578.)
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		Plaintiff also argues these costs represent unallowable “photocopying” charges under section 1033.5, subdivision (b)(3). Plaintiff’s argument lacks merit. Fees incurred for preparing, issuing, and serving deposition subpoenas for production of business records through a registered process server are recoverable under section 1033.5(a)(4), and are not subject to the copying exclusions of subdivision (b)(3). (<i>Naser, supra</i>, 227 Cal.App.4th at pp. 576-577.) Plaintiff next argues the costs are duplicative since subpoenas were served on the same providers multiple times. OCDE contends the subpoenas were not duplicative because Plaintiff received ongoing treatment, physical therapy, and imaging throughout the litigation requiring sequential subpoenas to capture newly generated records. (Beherns Decl., ¶ 10.) OCDE contends the service dates listed in Attachment 5d, ranging from July 2024 to April 2025, demonstrates a pattern of discovery aimed at monitoring Plaintiff’s medical condition and damages. This is a reasonable explanation. In her reply, Plaintiff does not dispute receiving ongoing treatment throughout this litigation. However, the service dates show that multiple subpoenas were issued to the same provider on the same day or a few days apart. Therefore, the many of the subpoenas appear to be duplicate as Plaintiff contends. For example, three subpoenas were issued to Mission Hospital Regional Medical Center on 11/8/24 (\$245.79), 11/11/24 (\$102.90), and 11/25/24 (\$202.50). Similarly, two subpoenas were issued to Select Physical Therapy on 11/6/24 (\$88.13 and \$191.78). Neither Attachment 5d nor OCDE’s opposition explains why multiple subpoenas were issued to the same provider on the same day or within a few days. As such, OCDE has not established all of the subpoenas were reasonably necessary. In her reply, Plaintiff argues for the first time that Defendant Capistrano Unified School District issued 22 of the subpoenas, not OCDE. (See Remick Decl. iso Reply, ¶¶ 4-5, Exs. B-C.) Because Plaintiff did not raise this point in her motion, she did not adequately place it in issue. Because OCDE failed to adequately explain the apparent duplicate subpoenas, the motion is GRANTED in part as to Item 5 – service of process costs. The motion is DENIED as to the Item 4 – deposition costs. Defendant Orange County Department of Education’s memorandum of costs is ORDERED taxed in the amount of \$1,346.83.
7	Interinsurance Exchange of the Automobile Club vs. Taylor 2023-01322290	Defendant’s Motion to Amend the Judgment is DENIED. Defendant Christopher Michael Taylor’s Motion to Vacate Judgment is DENIED.

	Motion to Amend and Vacate Judgment	The filing of a proof of service that complies with the statutory standards creates a rebuttable presumption that the service was proper. (<i>Floveyor Internat., Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 795.) Plaintiff filed a proof of substitute service on April 15, 2024. (ROA 19.) Defendant has failed to rebut the presumption of valid substitute service. Thus, Defendant’s Motion is denied. Defendant Christopher Michael Taylor’s Motion to Amend the Judgment is DENIED as moot. Plaintiff filed an acknowledgment of full satisfaction of judgment on June 23, 2026. Thus, the judgment is no longer at issue and Defendant’s Motion to amend the judgment is moot.
8	Shu v. Hyundai Motor America 2026-01540769 Motion to Compel Arbitration	Defendant Hyundai Motor America’s (“HMA”) motion to compel plaintiff Connie Shu to arbitrate her claims and to stay this action pending arbitration is GRANTED. HMA’s Request for Judicial Notice is GRANTED. HMA moves to compel arbitration under the: (1) Owner’s Handbook & Warranty Information (“Warranty”); and (2) Bluelink Connected Services Agreement (“CSA”). Existence of valid agreement to arbitrate: Plaintiff purchased a 2022 Hyundai IONIQ 5 (“Subject Vehicle”) on February 5, 2022. (Complaint, ¶ 6.) Plaintiff received a Warranty as part of the purchase which includes an agreement to arbitrate in Section 4. (Ameripour Decl., ¶ 3, Ex. 3, p. 12.) Plaintiff contends the Warranty was neither signed nor meaningfully negotiated by Plaintiff and it lacks the mutual assent required to form a binding arbitration agreement. (Opp., 2:8-9.) In a recent decision, <i>Kostandian v. American Honda Motor Co.</i> (2026) 120 Cal.App.5th 872 [2026 WL 1495175] (<i>Kostandian</i>), the Second Appellate District, Division Two, rejected the argument that the arbitration provision in a warranty booklet is not an agreement. Specifically, the court of appeal concluded appellants met their initial burden of establishing an arbitration agreement in the warranty booklet as to American Honda Motor because “[a]ppellants presented a copy of the agreement, stated the relevant terms thereof verbatim, and provided the necessary allegations. The burden therefore shifted to respondent to dispute the existence of an arbitration agreement as to American Honda Motor.” (<i>Id.</i> at *6.) In finding respondent failed to dispute he had an existing arbitration agreement with American Honda Motor in the warranty booklet, the court of appeal stated that “While respondent here posits there was no mutual assent since he did not receive the warranty booklet until after the sale was completed, no evidence was

presented supporting this assertion. Respondent provided no declaration stating when he received the warranty booklet. Even if respondent had provided such statements, they would be at odds with his signings confirming he received the vehicle's warranty information as well as his pleadings indicating 'representations were made [to respondent] in Manufacturer's New Vehicle Limited Warranty.' In addition, respondent does not argue he had no reason to believe he had a contractual relationship with American Honda Motor. Thus, respondent failed to meet his burden of proof in disputing the existence of an arbitration agreement with American Honda Motor." (*Id.* at *7.)

Similarly, here, Plaintiff has failed to meet her burden of proof in disputing the existence of an agreement to arbitrate in the Warranty. Plaintiff has not submitted a declaration stating she did not receive the Warranty. Instead, the Complaint expressly states: "Along with the acquisition of the Vehicle, Plaintiff received written warranties and other express and implied warranties including, but not limited to, warranties from Defendants that the Vehicle and its components would be free from all defects in material and workmanship; that the Vehicle would pass without objection in the trade under the Contract description; that the Vehicle would be fit for the ordinary purposes for which it was intended; that the Vehicle would conform to the promises and affirmations of fact made; and that Defendants would perform any repairs, alignments, adjustments, and/or replacements of any parts necessary to ensure that the Vehicle was free from any defects in material and workmanship." (Complaint, ¶ 7.) Further, as in *Kostandian*, Plaintiff has not submitted a declaration and does not argue she had no reason to believe she had a contractual relationship with Defendant. Therefore, HMA has shown the existence of an agreement to arbitrate in the Warranty.

Agreement encompasses the dispute at issue:

The agreement to arbitrate applies to: "any claim or disputes between us ... related to or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty . . ." (Ameripour Decl., ¶ 3, Ex. 3, p. 12.) Therefore, the agreement to arbitrate contained in the Warranty is broad enough to encompass Plaintiff's claims.

Defenses to the Arbitration Agreement:

Plaintiff also argues the agreement to arbitrate in the Warranty is unenforceable because it is unconscionable. Procedural and substantive unconscionability "must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability." (*Armendariz v. Foundation Health*

		<i>Psychcare Servs., Inc.</i> (2000) 24 Cal.4th 83, 114.) However, they need not be present in the same degree. (<i>Ibid.</i>) A sliding scale approach is used and the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required. (<i>Ibid.</i>) Plaintiff has shown there is some minimal degree of procedural unconscionability but has failed to show the agreement to arbitrate is substantively unconscionable. Since the Court grants the motion to compel arbitration based on the arbitration agreement contained in the Warranty, the court does not reach HMA's argument that it can compel arbitration pursuant to the CSA. The Court will set a post-arbitration status conference for a future date to be determined on July 6, 2026. The parties are ORDERED to file a Status Report 5 days prior. The Case Management Conference set for 8/3/26 at 8:30 AM in Department C15 is vacated. Moving Defendant to give notice.
9	Tsirsis v. Pacific Hospital Long Beach 2021-01234325 Motion for Summary Judgment/Adjudication.	Defendant Dr. Ian Armstrong's Motion for Summary Judgment/Adjudication is CONTINUED to 8/3/26. This case was filed on 12/2/21 and Plaintiff has had approximately four years and six months to obtain and present evidence supporting his claims against Defendant. Nonetheless, in light of California law favoring adjudication on the merits, the Court will give Plaintiff a final opportunity to withdraw the deemed admissions and present admissible evidence in support of his opposition to summary judgment. The motion is continued to 8/3/26, to be heard after Plaintiff's motion to withdraw the admissions. Plaintiff shall file and serve a supplemental brief in opposition, which must be supported by a separate statement and admissible evidence, no later than 7/24/26. (Code Civ. Proc. § 437c; California Rule of Court 3.1350(e).) Defendant may file and serve a supplemental response no later than 7/28/26. The supplemental memoranda of points and authorities shall not exceed five pages each.